

MUTUAL NON-DISCLOSURE, NON-USE, AND NON-CIRCUMVENTION AGREEMENT (NNN)

This Mutual Non-Disclosure, Non-Use, and Non-Circumvention Agreement (the "Agreement") is entered into by and between:

- **Minds & Models, s.r.o. ("M&M")**, a company incorporated under the laws of the Czech Republic, and
- **LUXX Light Technology (HK) Ltd ("Distributor")**, a company incorporated under the laws of Hong Kong, China.

Collectively referred to as the "Parties" and individually as a "Party."

1. Purpose

The Parties intend to explore a potential business relationship regarding a distribution partnership for M&M's AI consumer intelligence and ad personalization technology (the "Permitted Purpose"). In connection with the Permitted Purpose, M&M may disclose certain sensitive, proprietary, and confidential information, including physical hardware devices.

2. Definition of Confidential Information

For the purposes of this Agreement, "Confidential Information" shall include all non-public information disclosed by M&M, including but not limited to:

- **Technical IP:** Source code, AI algorithms, machine learning models, camera data processing logic, and physical hardware schematics.
- **Business Assets:** Financial data, go-to-market strategies, customer lists, and pricing models.
- **Technical Infrastructure:** Backend API structures, know-how, and third-party data integrations.

3. Non-Disclosure Obligations

The Distributor agrees to hold all Confidential Information in strict confidence. The Distributor may only share operational Confidential Information with End Users if such End Users execute a written agreement with confidentiality obligations at least as restrictive as those contained herein (the "Flow-Down"). Under no circumstances shall M&M's core IP, source code, or AI algorithms be disclosed to End Users or any unauthorized third parties.

4. Strict Non-Use & Anti-Tampering (The "Non-Use" Clause)

The Distributor expressly agrees that it shall not use the Confidential Information for any purpose whatsoever other than the Permitted Purpose. Specifically, the Distributor is strictly prohibited from:

- Disassembling, decompiling, or reverse-engineering M&M's hardware devices or software applications.
- Intercepting data feeds or probing API endpoints.
- Using M&M's Confidential Information, hardware outputs, or data feeds to train, calibrate, or develop alternative AI models or competing products.
- Filing any patents, trademarks, or intellectual property registrations based on or derived from M&M's technology in any jurisdiction.

5. Non-Circumvention (The "Non-Circumvention" Clause)

For a period of **five (5) years** following the termination of this Agreement, the Distributor agrees not to:

1. Directly or indirectly develop, manufacture, or distribute competing AI-driven consumer intelligence or automated AI ad personalization software.
2. Bypass or circumvent M&M to offer similar services directly to clients, partners, or End Users introduced to the Distributor through this partnership.

6. Data Security & Privacy (GDPR Compliance)

If data generated by the physical devices routes through the Distributor's servers, the Distributor must implement industry-standard security measures, including end-to-end encryption. The Distributor strictly acts as a Data Processor under the General Data Protection Regulation (GDPR). A separate Data Processing Agreement (DPA) must be executed prior to any live data flowing through the Distributor's infrastructure.

7. Contractual Penalty (Liquidated Damages)

In the event of a breach of the Non-Disclosure, Non-Use, Anti-Tampering, Data Security, or Non-Circumvention obligations set forth in this Agreement, the Distributor shall pay to M&M a contractual penalty (liquidated damages) of **€50,000 (Fifty Thousand Euros)** for each individual instance of breach. The payment of this penalty shall not waive M&M's right to seek additional damages or injunctive relief.

8. Governing Law & Dispute Resolution

To ensure global enforceability under the New York Convention while maintaining M&M's jurisdictional preference:

- **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of the **Czech Republic**, excluding its conflicts of law principles.
- **International Arbitration:** Any dispute, controversy, or claim arising out of or relating to this Agreement, including its breach, termination, or invalidity, shall be finally resolved by arbitration in accordance with the Rules of the Arbitration Court attached to the Economic Chamber of the Czech Republic and Agricultural Chamber of the Czech Republic by one or more arbitrators appointed in accordance with the said Rules. The seat of arbitration shall be **Prague, Czech Republic**. The language of the arbitration shall be English.
- **Global Injunctive Relief:** Notwithstanding the arbitration clause, M&M retains the absolute right to apply to any court of competent jurisdiction anywhere in the world for

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urgent, interim, or injunctive relief to prevent the immediate breach of its intellectual property or confidentiality rights.

9. Term and Survival

This Agreement shall become effective upon execution by both Parties and shall remain in effect until terminated by either Party upon thirty (30) days' written notice. Notwithstanding any termination of this Agreement, the Distributor's obligations regarding Confidential Information shall survive as follows:

- **Standard Confidential Information:** The obligations under Section 3 (Non-Disclosure) and Section 4 (Strict Non-Use & Anti-Tampering) shall survive for a period of **five (5) years** following the termination of this Agreement.
- **Trade Secrets:** With respect to Confidential Information that constitutes a trade secret under applicable law (including but not limited to source code, core algorithms, and hardware schematics), the obligations of confidentiality and non-use shall survive **indefinitely**, or for as long as such information remains a trade secret.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date last written below.

For Minds & Models, s.r.o.	For LUXX Light Technology (HK) Ltd
Name:	Name: Georg Vögtle
Title:	Title: General Manager
Date:	Date: Apr 24 th 2026
Signature:	Signature:  